

BEFORE THE IOWA BOARD OF SOCIAL WORK

IN THE MATTER OF:	)	DIA NO: 07DPHSW007
	)	
	)	
CHRISTINE MOORE	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On May 21, 2007 the Iowa Board of Social Work (Board) sent Christine Moore (Applicant) a preliminary notice of intent to deny her application for reactivation of her license to practice social work at the bachelor's level. The Applicant appealed, and a Notice of Hearing was issued on July 2, 2007. The first hearing date was continued at Respondent's request.

The hearing was held on November 26, 2007 at 1:30 p.m. in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The following members of the Board presided at the hearing: Joyce Westphal, LISW, Chairperson; Katinka Keith, LISW; David Stout, LMSW; and Mary Tasler, public member. Administrative Law Judge Margaret LaMarche assisted the Board in conducting the hearing. The Applicant appeared and was represented by attorney James Sayre. Assistant Attorney General Heather Adams represented the state. A certified court reporter recorded the hearing. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(2007). Following the hearing, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(2007). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the testimony of the witness and the following exhibits:

State Exhibit 1:	Preliminary Notice of Intent To Deny License Reactivation
State Exhibit 2:	Application for Reactivation of Iowa License, 4/24/07
State Exhibit 3:	Letter, Jorgenson to Applicant, 4/26/07
State Exhibit 4:	Letter, Applicant to Jorgenson, 5/4/07
	Judgment in Criminal Case, 12/1/05

	Eastern Iowa Center for Problem Gambling Intake/Assessment Data and Discharge Summary
State Exhibit 5:	Letter, Donohoo to Sparks, 6/7/07
State Exhibit 6:	Request for Appeal
State Exhibit 7:	Notice of Hearing
State Exhibit 8:	Preliminary Notice of Intent to Deny Licensure, 8/16/07
State Exhibit 9:	Letter, Sparks to Applicant (8/16/07)
State Exhibit 10:	Appeal Letter, 9/13/07
State Exhibit 11:	Notice of Hearing, 9/21/07
Applicant Exhibit A:	Affidavit of Applicant
Applicant Exhibit B:	Affidavit of Janet Meisenbach

ISSUE

Whether the Board's initial decision denying the Applicant's request for reactivation of her social work licensure at the bachelor's level due to her felony conviction and insufficient evidence of remediation was correct?

FINDINGS OF FACT

1. The Applicant was licensed as a bachelor level social worker in the state of Iowa (License #04465) but her license has expired. The Applicant was employed as a social worker by Scott County Community Services from April 1, 1995 until November 13, 2002. On November 13, 2002, the Applicant admitted embezzling social security funds that her office held for individual clients. The Applicant's employment was terminated that day. (Testimony of Applicant; State Exhibit 2)

2. The Applicant embezzled approximately \$103,000 over the course of approximately one year because she had a serious gambling problem. The Applicant entered treatment at the Eastern Iowa Center for Problem Gambling on November 14, 2002. The treatment included individual counseling, group therapy, and attendance at Gamblers Anonymous (GA). The Applicant continued in treatment until her discharge on February 1, 2006. (Testimony of Applicant; State Exhibit 4; Applicant Exhibit A)

3. In April 2005¹, the Applicant was charged in the United States District Court for the Southern District with Theft of United States Funds, a felony. The Applicant entered a guilty plea, and on December 1, 2005, she was sentenced to serve one year and one day in a federal prison, followed by two years of supervised release. The Applicant was required to pay a total of \$109,471.71 in restitution, which included the cost of the financial audit. (Testimony of Applicant; State Exhibit 4)

4. The Applicant reported to federal prison camp in February 2006 and was released to a halfway house after serving 289 days. The Applicant commenced her two year period of supervised release on December 15, 2006 and has been complying with the conditions of release. Since her release, the Applicant has made regular monthly restitution payments of approximately \$300. She still owes a substantial amount of restitution. (Testimony of Applicant; State Exhibit 5)

5. The Applicant has been employed by the Eastern Iowa Center for Problem Gambling, Inc. as a Public Awareness Specialist since February 5, 2007. She works with other staff to inform the public about the availability of gambling treatment services. The Applicant's supervisor has advised her that if she is able to have her social work license reinstated, she could ultimately be certified as a gambling treatment counselor. The Applicant's supervisor provided an affidavit attesting to the Applicant's rehabilitation, albeit with one relapse, and to her value as an employee. (Testimony of Applicant; Applicant Exhibit B)

CONCLUSIONS OF LAW

Iowa Code section 147.4 (2007) provides that the department may refuse to grant a license to practice a profession to any person otherwise qualified upon any of the grounds for which a license may be revoked or suspended.

645 IAC 283.2(11) provides, in relevant part:

645-283.2(272C) Grounds for discipline. The board may impose any of the disciplinary sanctions provided in

¹ The Applicant testified that she had repeatedly inquired concerning the status of any criminal charges against her and was upset that the government waited so long to make the decision to file charges.

rule 645-283.3(272C) when the board determines that the licensee is guilty of any of the following acts or offenses:

...

283.2(11) Conviction of a felony related to the profession or occupation of the licensee or conviction of any felony that would affect the licensee's ability to practice social work. A copy of the record of conviction or plea of guilty shall be conclusive evidence.

The Applicant has been convicted of a felony that was directly related to her practice as a social worker, and her embezzlement of more than \$100,000 constituted a substantial breach of the confidence and trust placed in her by her employer and her social work clients. In addition, the Applicant's crime undermines public confidence in the social work profession as a whole. The facts underlying the Applicant's felony conviction justify the Board's decision to deny license reactivation at this time. Iowa Code section 147.4(2007); 645 IAC 283.2(11).

The Board's first obligation is to protect the public. The Applicant has taken important steps toward rehabilitation by assuming legal responsibility for her actions, by obtaining treatment for her gambling addiction, and by making regular payments toward her substantial restitution obligation. Nevertheless, given the extremely serious nature of the Applicant's crime and its direct relationship to her position as a social worker, the Board is unwilling to reactivate the Applicant's social work license before she has been discharged from supervised release. Moreover, the Applicant's testimony demonstrated that she lacks sufficient insight into the pattern of her disassociative gambling addiction to ensure that she will not suffer a further relapse or that her own addiction issues will not have a negative impact on her social work practice.

In order to obtain license reactivation in the future, the Applicant must demonstrate that she has:

- Been discharged from supervised release;
- Participated in ongoing individual therapy for her gambling addiction and personal issues;
- Obtained professional boundary training to ensure that she maintains clear professional boundaries when counseling or

participating in group therapy sessions with persons who have addictions similar to her own;

- Obtained practice supervision from a licensed mental health professional for any outreach, educational, or counseling work she does with clients prior to reactivation of her social work license.

DECISION AND ORDER

IT IS THEREFORE ORDERED that the application filed by Christine Moore to reactivate her license to practice social work at the bachelor level is hereby DENIED.

This Findings of Fact, Conclusions of Law, Decision and Order is approved by the Social Work Board on December 20, 2007.